

PUBLIC FACILITY AND CIRCULATION EASEMENT AGREEMENT

THIS ACCESS EASEMENT AGREEMENT ("Agreement") is made as of the _____ day of _____, 2024 ("Effective Date"), by and between the City of Cheyenne, Wyoming, a duly-organized municipal corporation, having an address at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Magic City Enterprises, Inc., having an address at 1780 Westland Road, Cheyenne, WY 82001 ("Magic City," together with the City, the "Parties," and each individually, a "Party").

RECITALS

- A. Magic City is the fee owner of that certain real property located at 1780 Westland Road, Cheyenne, Wyoming, and more particularly described in Exhibit A attached hereto, the northern portion of which, as more particularly described on Exhibit B attached hereto, Magic City has agreed to subject to the terms of this Agreement (such portion, the "Easement Area M-1");
- B. The City is the fee owner of that certain real property located at 1800 Westland Road, Cheyenne, Wyoming, and more particularly described in Exhibit C attached hereto, the southern portion of which, as more particularly described on Exhibit D attached hereto, the City has agreed to subject to the terms of this Agreement (such portion, the "Easement Area C-1," and together with Easement Area M-1, the "Easement Areas");
- C. Each of the Parties affirms to the other that (i) it is the lawful owner of its real property as described above, (ii) it has a good and lawful right and authority to grant, sell, and convey its interest in its property, or any part thereof, described above, and (iii) it warrants the title to its property described above;
- D. The Parties desire to mutually convey each to the other, and their respective successors and assigns, the right to use and occupy their respective Easement Areas for purposes of constructing public facilities for access and other ancillary purposes, all on the terms and conditions more specifically set forth in this Agreement; and
- E. The Parties acknowledge that, following execution hereof, they will have a mutual obligation to maintain the facilities within the Easement Areas in accordance with this Agreement.

NOW THEREFORE, in consideration of the sum of Ten Dollars (\$10.00), other good and valuable consideration paid to or received by each of the Parties, and the mutual covenants, terms, and conditions set forth herein, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. Incorporation of Recitals; Definitions. The foregoing recitals are true and correct and are expressly incorporated herein by this reference. For purposes of this

Agreement, the term "Burdened Property," as defined in Section 2 below, shall mean the real property of a Party as and when subjected to the terms, conditions, obligations and burdens of the easements created by this Agreement. For purposes of this Agreement, the term "Benefitted Property," as defined in Section 2 below, shall mean the real property of a Party as and when granted the rights, privileges and benefits of the easements created by this Agreement. It is acknowledged and agreed that in light of the reciprocal nature of the easements created by this Agreement, the real property of each of the Parties described herein will be both a Burdened Property and a Benefitted Property, as circumstances dictate from time to time, under this Agreement.

2. Reciprocal Grant of Easement. Each of the Parties (in such capacity, a "Burdened Property Owner") hereby grants and conveys to the other Party (in such capacity, a "Benefitted Property Owner"), its legal representatives, successors and assigns, and to any future owner of such Benefitted Property Owner's real property as described herein (the "Benefitted Property"), an irrevocable, non-exclusive, appurtenant access easement (the "Easement") in, under, upon, about, over, through and across that portion of the Easement Area located upon the Burdened Party's real property (the "Burdened Property") for the benefit of the Benefitted Property, for purposes of pedestrian and vehicular access, parking, ingress and egress; maintenance and repairs to the Easement Area; and any and all other ancillary purposes reasonably associated therewith.
3. Duration. This Easement granted herein shall remain in full force and effect in perpetuity, unless and until terminated by written agreement signed by the then-current owners of both the Burdened Property and the Benefitted Property.
4. Use of Easement Area. The Easement, rights, and privileges set forth herein shall be for the benefit of the Benefitted Property Owners, each as an owner of a Benefitted Property, and binding on their respective successors and assigns, each as owner of a Burdened Property, and each of their respective tenants, licensees, customers, employees, agents, and invitees. The Easement, rights, privileges, restrictions, benefits, and obligations hereunder shall be covenants running with title to each Benefitted Property.
5. Access. The Parties, including their respective employees, contractors, and agents, shall have the right of access to the Easement Area twenty-four (24) hours per day, seven (7) days per week, subject to reasonable periods of temporary closure to accommodate maintenance, repair and similar activities. Each Party's use of the Easement Area shall be undertaken in a fashion so as not to unreasonably interfere with the use thereof by the other Party hereto.
6. Driveway Improvements. The City shall, at its sole cost and expense except as hereinafter described, construct a paved driveway and related improvements within the Easement Areas (Easement Areas M-1 and C-1). The plans and specifications for such construction shall be provided to Magic City for approval

prior to commencement of construction, which approval shall not be unreasonably withheld, conditioned or delayed. The City shall secure and pay for all permits and approvals required in connection with such construction. All construction shall be completed in a good-and-workmanlike manner and paid for in full such that the properties described herein shall remain free from liens for construction, materials or other obligations. The Parties shall coordinate and cooperate with one another so that the construction of the driveway and improvements can proceed with limited interference in either Party's use of its property. Furthermore, Magic City understands and acknowledges that it shall be responsible for a portion of the cost of constructing the driveway improvements. That cost shall be the cost of standard pavement maintenance, including patching, milling, and overlaying as outlined in Exhibit E and detailed in Subparagraph a. below. The City shall indemnify and hold Magic City harmless from and against any and all damages, costs or liabilities arising from such construction activities, except to the extent such costs are the express responsibility of Magic City pursuant to this Agreement, and further except to the extent such damages, costs or liabilities arise from the willful or negligent acts or omissions of Magic City.

- a. Magic City shall contribute twelve thousand seven hundred dollars (\$12,700) for the costs of construction.

7. Driveway Maintenance. After construction by the City, the driveway and improvements within the Easement Areas shall be maintained by the City, or its successors in interest (the "Maintenance Obligations"). The Maintenance Obligations include, but are not limited to, re-surfacing, pothole repair, snow removal and other maintenance and repairs which are reasonably and customarily required or appropriate for a private commercial driveway in Cheyenne, Wyoming. Pedestrian and landscaping areas within and outside the Easement Areas shall be maintained by their respective property owners as are reasonably required or appropriate for a commercial site within Cheyenne, Wyoming. All Maintenance Obligations shall be performed and completed in a timely, good and workmanlike manner.

All costs associated with the periodic Maintenance Obligations other than snow removal (which shall be the sole responsibility of the City) in the Easement Areas shall be proportionately shared based on the amount of total anticipated daily traffic volume generated by each of the Parties and their respective contractors, guests and invitees. The following are the proportionate pavement costs as shown in Exhibit C, which shall be subject to equitable adjustment based upon actual usage of the Easement Areas by the Parties as provided below:

- a. The City shall contribute two-thirds (2/3rds) of perpetual periodic pavement maintenance costs.
- b. Magic City shall contribute one-third (1/3rd) of perpetual periodic pavement maintenance costs (such amount, the "Magic City

Obligation”).

- c. In connection with the foregoing, and in the interest of allowing for predictable budgeting and funding, Magic City’s obligation to pay the Magic City Obligation shall be capped at an amount equal to \$2,000 annually, *provided, however*, that the unapplied portion of such amount shall accrue and increase annually, as of the execution and each anniversary of this Agreement, by an amount equal to said \$2,000 until actually applied to payment of the Magic City Obligation, *provided further* that at no time shall such unapplied accrual exceed an amount equal to \$20,000. Such accrued and unapplied funds shall be held by Magic City and applied against payment of the Magic City Obligation promptly following receipt of invoices for the same, with (i) any such application reducing the amount of the previously accrued and unapplied amounts associated with the Magic City Obligation, and (ii) any and all costs incurred in excess of the then-accrued and unapplied funds held with respect to the Magic City Obligation being paid by the City.
8. Both Parties agree that future modifications to their respective properties by a change of use defined by the Cheyenne Unified Development Code may affect traffic trip generation rates. If the actual trip generation rates increase or decrease by twenty (20) percent or more, regardless of whether a change of use occurs, both parties shall agree and sign an amendment to this Agreement to adjust their respective maintenance obligations accordingly. Any costs incurred for the modification shall be either (a) borne by the Party which changed the use of its property or (b) split equally if there is no change in use. See paragraph 13.g.
9. Damage and Destruction.
- a. Neither of the Parties shall have any responsibility to the other or their respective agents, contractors, tenants, or other invitees in the event of any damage to or theft or loss of any equipment or property of the other Party, and the Party incurring such damage, theft, or loss shall look to its own insurance coverage (and to any self-insured portion of the damage, theft, or loss), if any, for recovery in the event of any such damage, theft, or loss, except in each case if the loss is caused by the willful or negligent acts or omissions of the other Party.
 - b. If all, or a portion, of the Easement Areas is destroyed or damaged by fire or other casualty, the Parties shall promptly proceed to repair such damage and restore the Easement Areas to the condition existing prior to such damage. The cost shall be equally shared by both parties, except in the event the damage is caused by the willful or negligent acts or omissions of a Party, in which case said Party shall be responsible for such costs.
10. Indemnification. Each Party to this Agreement assumes the risk of any liability

arising from its own conduct. Each Party agrees that it will be responsible for any loss, claim, damages, or demands resulting from its negligence or willful misconduct and the negligence or willful misconduct of its employees and agents. Neither Party agrees to insure, defend, or indemnify the other, except as expressly provided to the contrary herein. Magic City will provide insurance during construction.

11. Not Public Dedication. Nothing set forth in this Agreement constitutes or shall be deemed to be a gift or dedication of any portion of the Easement Areas or any portion of either Burdened Property to the general public or for any public purposes, it being the intention of the parties that this Agreement shall be strictly limited to and for the purposes herein expressed.
12. Governmental/Sovereign Immunity. The City does not waive its Governmental/Sovereign Immunity, as provided by any applicable law including Wyo. Stat. § 1-39-101, *et seq.*, by entering into this Agreement. Further, City fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law based on this Agreement, with the express exception for an action brought to enforce the terms of this Agreement and an action for damages stemming from breach hereof.
13. Miscellaneous.
 - a. Entire Agreement. This Agreement represents the entire and integrated agreement and understanding between the Parties and supersedes all prior negotiations, statements, representations, and agreements, whether written or oral.
 - b. Counterparts. This Agreement may be executed in two or more counterparts, each of which shall be deemed to be an original, but all of which together shall constitute one and the same instrument.
 - c. Governing Law. The Parties mutually understand and agree this Agreement shall be governed by and interpreted pursuant to the laws of the State of Wyoming.
 - d. Section Headings. The section titles herein are for convenience only and do not define, limit, or construe the contents of such sections.
 - e. Attachment and Exhibits. All attachments and exhibits to this Agreement are hereby made a part hereof as if fully set out herein.
 - f. Severability. If any provision or provisions in this Agreement is/are found to be in violation of any law or otherwise unenforceable, all other provisions shall remain unaffected in full force and effect.

- g. Binding Effect. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns and shall not be amended, waived, or discharged, except by a written instrument, executed by the Parties (or their respective, successors and assigns), and which written document shall be recorded in the real property records of Laramie County, Wyoming.
- 14. Payment. Upon receiving itemized invoices from the City, Magic City agrees to pay the City for a portion of the cost of constructing the accepted and approved Easement Area improvements and associated periodic pavement maintenance costs, up to the amount of the Magic City Obligation and any unapplied accrual thereof. Such costs shall include, but not necessarily be limited to, materials, labor, and incidentals required to construct improvements, or provide required periodic pavement maintenance, as determined by the successful bidder in the Magic City Obligation amount as outlined in Paragraph 6, Driveway Improvements and Paragraph 7, Driveway Maintenance.
- 15. Signatures. The Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement.

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IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

CITY OF CHEYENNE, WYOMING, a
duly organized municipal corporation

By: _____
Patrick J. Collins, Mayor

(SEAL)
Attest:

Kristina F. Jones, City

Clerk STATE OF

WYOMING)
) ss.
COUNTY OF LARAMIE)

On this _____ day of _____, 2024, before me, the undersigned, personally appeared Patrick J. Collins, to me personally known, Mayor of the City of Cheyenne, Wyoming, a duly-organized municipal corporation, who executed the within Agreement, and acknowledged to me that she executed the same for the purposes therein stated.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal at my office in the County aforesaid the day and year last above written.

(SEAL)

Printed Name: _____
Notary Public in and for said State.
Commissioned in Laramie County

My Commission Expires:

Magic City Enterprises, Inc.,

a Wyoming corporation

By: _____

Printed Name: _____

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

On this _____ day of _____, 2024, before me, the undersigned, personally appeared _____, to me personally known as the _____ of Magic City Enterprises, Inc., known to me to be the person who executed the within Agreement on behalf of said corporation and acknowledged to me that (s)he executed the same for the purposes therein stated, and as his free act and deed, and as the free act and deed of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal at my office in the County aforesaid the day and year last above written.

(SEAL)

Printed Name: _____
Notary Public in and for said State.
Commissioned in _____ County.

My Commission Expires

- City of Cheyenne (Lot A)
- Magic City Enterprises (Lot B)
- Shared Access/Maintenance Area

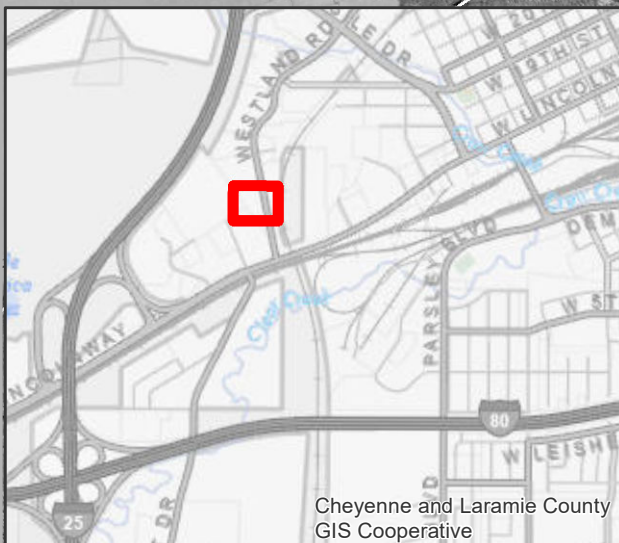
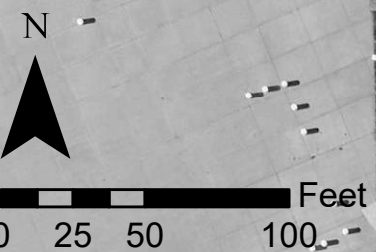
Easement Area (M-1)



**Magic
City
Enterprises**

1720

WESTLAND RD



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Date: 10/27/2023

EXHIBIT B**PROPOSED STANDARD AND CUSTOMARY MAINTENANCE COSTS TO EASEMENT AREA (M-1)**Project #: **Magic City Drive Approach Maintenance**Project Name: **ENGINEER'S OPINION OF COST**Compiled By: **D. Klahn, T. Cobb**Date: **3.4.2024**

				PROPOSED PROJECT	
Item No.	Item	Total	Unit	Unit Price	Total
1030.01	MOBILIZATION	1	LS	\$ 1,000.00	\$ 1,000.00
2020.01	MILLING PLANT MIX	386	SY	\$ 2.50	\$ 965.00
2512.01	PLANT MIX BITUMINOUS PAVEMENT (TYPE II) GRADING 'A' - 2-1/2"	52	Ton	\$ 150.00	\$ 7,800.00
2520.01	PLANT MIX BITUMINOUS PATCH AFTER MILL	30	SY	\$ 80.00	\$ 2,400.00
8000.00	QUALITY CONTROL TESTING	1	LS	\$ 500.00	\$ 500.00
SUB-TOTAL					\$ 12,665.00
FOR ESTIMATE					\$ 12,700.00

Footnotes:

- (1) The Cost Estimates were developed using data from Weighted Average Bid Prices, compiled by WYDOT; and Construction Costs from historical City of Cheyenne project experience database.
- (2) Please note totals and unit prices are calculated based on 2024 present worth or present value dollars. Adjustments should be made for years beyond the present year to better estimate required capital dollars for future improvements plan(s).
- (3) Estimated values for Mobilization at 5.5% of total construction cost, respectively.

EXHIBIT C
TRIP GENERATION RATES MAINTENANCE COST SHARES

Description/ ITE Code	Units	Expected Units	Weekday Vehicle Trips							Site Traffic
			Daily	AM Peak Hour			PM Peak Hour			
				In	Out	Total	In	Out	Total	
Intermodal Truck Terminal 030	Acres	1.67	137	5	7	12	5	6	11	59%
Corporate Headquarters 714	KSF	1/2(24.0)	96	17	1	18	2	15	17	41%
Total Site Trips			233	22	8	30	6	21	28	100%

Footnotes:
 (1) ITE 9th Edition Trip Generation Rates
 (2) Magic City Enterprises Traffic Assumed Trip Distribution 1/2 to each approach based on total.